RAMBAM'S LAWS OF ETHICS - HILCHOT DEOT

Don't Hate in Your Heart: Friends, Love & the Real Misvah of Rebuke

Hilchot Deot Ch. 6

Sefer: Mishneh Torah, Hilchot Deot (Rambam's Laws of Ethics) **Chapter:** 6, Halachot 1–7 **Shiur:** Part 6 of the seven-part series ("our penultimate chapter"), given by Dayan Daniel Kada on Zoom and Facebook, Tuesday 12 January 2021

These notes are based on an automatic transcript of the recording. The recording stops partway through Halacha 7, so the end of the shiur is not included.

Introduction: From the Self to Society

The first five chapters were all about the individual:

Chapter	Topic
1–2	Carving out the middle path for yourself; avoiding extremes
3	Enjoying the world around us, for the right purpose
4	The Rambam's diet
5	How to become a wise person (the traits of the Hacham, covered the previous week)
6	**How we relate to other people and to society, including people we don't get along with**
7	Next week: the laws of slander and gossip, *lashon hara* and *rechilut*

Announcements: - In a couple of weeks, on 2 and 9 February, the Rabbi would be in conversation with Rabbi Joseph Dweck on two of Rabbi Sacks' books, *The Great Partnership* and *Not in God's Name*. Details would go on the WhatsApp group. - A new **daily halacha** WhatsApp group had started, learning the laws of *kibbud av va'em*. People could ask in the chat to join.

Part 1: You Become Your Company (Halacha 1)

דרך ברייתו של אדם להיות נמשך בדעותיו ובמעשיו אחר רעיו וחביריו ונוהג כמנהג אנשי מדינתו It is human nature to be drawn, in one's views and actions, after one's friends and companions, and to follow the customs of the people of one's country.

לפיכך צריך אדם להתחבר לצדיקים ולישב אצל החכמים תמיד כדי שילמוד ממעשיהם, ויתרחק מן הרשעים ההולכים בחשך Therefore a person must connect himself with the righteous and sit constantly with the wise, to learn from their deeds, and distance himself from the wicked who walk in darkness.

Two different verbs

	Verb	Meaning
the – **צדיקים** righteous	to ,**להתחבר** connect	Have good friends who are good people
the wise – **חכמים**	to sit ,**לישב אצל** beside	You can't just be friends with them. You have to sit with them, learn from them and go to them

The tsaddik is righteous but not necessarily learned. The Hacham is "the complete picture," the one who has the wisdom, so you have to *sit* with him.

הולך את חכמים יחכם ורועה כסילים ירוע: whoever walks with the wise becomes wise; whoever keeps company with fools will suffer (Mishlei 13:20).

אשרי האיש אשר לא הלך בעצת רשעים: David HaMelech opens Tehillim with this "sociological truth." *Praiseworthy is the one who did not walk in the counsel of the wicked, stand in the way of sinners, or sit in the seat of scoffers.* Who you spend time with defines who you are.

The Torah doesn't deny your nature

The Torah could simply have said, "If you're among such people, don't copy them." Instead it recognises that it's **not possible** to be among them without being influenced. We are social beings, influenced by people's actions *and* their ideas. (Even in a year of lockdowns, we're still influenced by the media and our daily interactions.)

- **The Midrash's analogy:** spend enough time in a perfumery and you come out smelling nice; spend it in a tannery and you come out smelling bad.
- **Two security guards.** Two people take the same course and qualify together. One spends 30 years guarding a high-security prison; the other spends 30 years in an art museum. "Without a shadow of doubt, at 50 they will be very different people," because of what each heard and saw every day.
- **The Stanford Prison Experiment.** Volunteers playing guards and prisoners were so quickly influenced by their roles, the guards acting sadistically, that the planned two-week experiment was called off after six days.

When we do make time to examine our lives, we look at what we've done right and wrong. **We rarely examine our friends and communities.** The worst outcome is that we stop thinking altogether and just follow the people around us. "The power of the aggregate can be very strong."

"As in our times": what if everywhere is bad?

ואם היו כל המדינות שהוא יודען ושומע שמועתן נוהגים בדרך לא טובה כמו זמנינו... ישב לבדו יחידי... ואם היו רעים וחטאים שאין מניחים אותו... יצא למערות ולחוחים ולמדברות: If all the countries he knows of behave badly, *as in our times*… he should sit alone… and if they won't let him be unless he joins them, he should go out to the caves, the thickets and the deserts.

1. If your friends are bad, find other company.
2. If the whole town is bad, move to a better town.
3. If everywhere is like that, or you can't travel (because of war or illness), become a loner: **ישב בדד וידום**, "let him sit alone and be silent" (Eichah 3:28).

4. If even that isn't allowed, go to the desert. **מי יתנני במדבר מלון אורחים**, "If only I were in the desert, in a travellers' lodge" (Yirmiyahu 9:1).

"Pretty harsh words," clearly hyperbolic, but striking: 850 years ago the Rambam said that wherever he looked, there was a problem.

So what did the Rambam do? He lived a fairly secluded life. He never took a public position. He wasn't a communal rabbi or head of a Beth Din. He earned his living as a doctor, and the rest of the time he studied and wrote. We are social beings and need to mix with people. The lesson is: **never underestimate the impact of those around you** on your life and your children's lives.

Part 2: Cleave to the Hachamim (Halacha 2)

> **מצות עשה להדבק בחכמים ותלמידיהם כדי ללמוד ממעשיהם, כענין שנאמר ובו תדבק** It is a positive commandment to cleave to the wise and their students, in order to learn from their deeds, as it says: "and to Him you shall cleave".

Why say it twice?

Halacha 1 already told us to keep good company. This is a pattern in the Rambam:

1. **First the moral and psychological truth.** This is how human beings work.
2. **Then the religious duty.** And by the way, it's also one of the 613 mitzvot, like tefillin.

He did the same at the start of the series. He laid out the psychology of the middle path, and only then said it is a mitzvah of the Torah to walk in the ways of Hashem. For the Rambam, the Torah isn't a document superimposed on life. **It is a blueprint for life**, flowing from the reality of the world, that lets you live in sync with your deepest nature.

Who is the Hacham?

The Rabbi asked the class this question. The answer is **Chapter 5**, last week's shiur. "That's why everything in the Rambam is in order." The whole of the last chapter defines the Hacham; this one says to cleave to people who meet those criteria. They are very hard to find today, so you have to really seek out a real Hacham.

> **לפיכך צריך אדם להשתדל שישא בת תלמיד חכם... ולאכול ולשתות עם תלמידי חכמים, ולעשות פרקמטיא לתלמיד חכם, ולהתחבר להן בכל מיני חבור... והוי מתאבק בעפר רגליהם ושותה בצמא את דבריהם** One should try to marry the daughter of a Torah scholar… to eat and drink with scholars, do business on their behalf, and connect with them in every way… "Sit in the dust of their feet and drink their words thirstily" (Avot 1:4).

For the Rambam this isn't about helping the Hacham. **It's for your own benefit.** Through marriage, meals and business you'll be in the right company, and as Halacha 1 taught, you'll come to behave the same way.

Spot the difference

The source is the Gemara (Ketubot 111b):

The Gemara lists…	Does the Rambam include it?
Marrying one's daughter to a Torah scholar	Yes
Doing business on behalf of Torah scholars	Yes
Benefiting Torah scholars from one's property	**No – deliberately omitted**

The Gemara says that whoever does these is considered as if he cleaves to the Shechinah. The class first guessed eating and drinking or learning, but those are in the Rambam. What's missing is supporting the scholar with money.

This is consistent with the Rambam's strong view that **a Hacham may not benefit materially from Torah** (Hilchot Talmud Torah 3:10):

Whoever decides to study Torah without working, and to live from charity, desecrates God's name, dishonours the Torah, extinguishes the light of faith, brings evil on himself and forfeits his life in the World to Come… Any Torah not accompanied by work will in the end be negated and lead to sin, and such a person will end up stealing from others.

"Extremely sharp words." The Rambam couldn't include giving money to the Hacham as a requirement, because he held that the Hacham must be self-sufficient.

From the class: rabbis' salaries

Flora asked about the professionalisation of the rabbinate, which she placed around Rabbi Shimon ben Tzemach Duran (the Tashbetz, late 14th to early 15th century). She noted that the Rambam is drawing on Pirkei Avot 4 ("don't make the Torah a crown to magnify yourself, or a spade to dig with"), and that the Tashbetz clearly disagreed with him.

The Rabbi agreed that the Tashbetz disagreed. Do rabbis take salaries? Yes, for several reasons:

- **The Noda BiYehudah** (Rabbi Yechezkel Landau, about 250 years ago): a rabbi may be paid **שכר בטלה**, compensation for the income he gives up by serving the community instead of working in another profession.
- **More simply, the role has changed.** The Rambam is criticising people who only sit and study, serve the community in no way, and rely on communal funds. Today a rabbi's role includes pastoral work, emotional support and much more. "Sometimes they end up being psychotherapists." Even the Rambam would agree it's fine to charge for that. What's problematic is charging specifically for Torah, for a shiur.

Part 3: Love Every Jew (Halacha 3)

מצוה על כל אדם לאהוב את כל אחד ואחד מישראל כגופו, שנאמר ואהבת לרעך כמוך. לפיכך צריך לספר בשבחו ולחוס על ממונו כאשר הוא חס על ממון עצמו ורוצה בכבוד עצמו

It is a mitzvah for every person to love every single Jew as himself, as it says: "love your fellow as yourself." Therefore one must speak in his praise and care for his money as he cares for his own, and for his honour as he wants his own honour.

Even the wicked? From the class

Flora asked whether a commentator says you don't have to love someone wicked. The Rabbi answered from the Rambam's **13 Principles of Faith**, which the class had studied earlier:

A person who believes in all these principles enters the category of Israel, and it is a mitzvah to love him and have mercy on him… even if he commits sins out of desire and the overpowering of his base nature. He is punished according to his sins, but he still has a share in the World to Come and is counted among the sinners of Israel. But if one of these principles is compromised, he leaves the category of Israel.

- **A *rasha* who believes is still part of Am Yisrael.** He has broken Shabbat or done this and that, but he counts for a minyan, his shechitah is valid, and there is a mitzvah to love him.
- **Someone who denies the principles of faith** is no longer included, and there is no longer a duty to love him.
- The Rabbi warned against misreading this Rambam as "some kind of liberal" statement that "you love everyone, it doesn't matter." The duty is to love people who are not attacking our beliefs.

Edwin asked: what if someone does something bad to you, do you still love him? The Rabbi said the chapter answers that shortly (see Part 5).

What about non-Jews?

Why is the mitzvah focused on fellow Jews? Because love needs a focus. "You can't just say 'love every single person.' We are in a community; we are one people." The obligation and the imperative point to fellow Jews, **but that doesn't exclude loving non-Jews.**

Compare other verses that say **רעך** ("your fellow"), such as *don't covet your fellow's wife* and *don't bear false witness against your fellow*. Nobody thinks this permits coveting a non-Jew's wife or bearing false witness against a non-Jew. The verse tells us where the obligation is focused; it doesn't exclude other forms of love.

You can't command a feeling, so act it into being

Why does the Rambam explain love through *speaking well of people* and *caring for their money*? Because **you can't simply switch on an emotion.** "I can't tell myself, 'I'm going to love every Jew now.' Life isn't that simple."

- **The electricity example.** When you leave your house, you switch off the lights and heating because you don't want to waste money. If someone lends you their house, or you're in a communal building, you do the same, because you care about their money as much as your own.
- When you live with this awareness, speaking positively about people and caring for their property like your own, **it generates real love and care inside you.** It takes work.

Part 4: Loving the Convert (Halacha 4)

אהבת הגר שבא ונכנס תחת כנפי השכינה שתי מצות עשה: אחת מפני שהוא בכלל ריעים, ואחת מפני שהוא גר, והתורה אמרה ואהבתם את הגר

Loving a convert who has come under the wings of the Shechinah involves two positive mitzvot: one because he is included among "your fellows," and one because he is a convert, and the Torah said: "you shall love the convert".

- Once someone converts, they are a **fully fledged Jew**, with an additional mitzvah on top.
- Just as we are commanded to love God (**ואהבת את ה' אלהיך**), we are commanded to love the convert. Hashem Himself **loves the convert** (**ואוהב גר**, Devarim 10:18).
- **The Rambam's letter to Ovadiah the convert.** The Rabbi attributed it to the *Iggeret HaShmad / Kiddush Hashem* (it is usually known as a separate letter to Ovadiah). The Rambam wrote that Jews trace their lineage to Avraham, whereas *you* trace your lineage to God, and are therefore more dear to Him.

- Converts have "joined the club, and they're fully part of the club." We must love them **at the very least** as much as any other Jew. It's a double imperative.

Part 5: Hatred in the Heart (Halacha 5)

כל השונא אדם מישראל בלבו עובר בלא תעשה, שנאמר לא תשנא את אחיך בלבבך... ולא הזהירה תורה אלא על שנאה שבלב, אבל המכה את חבירו והמחרפו, אף על פי שאינו רשאי, אינו עובר משום לא תשנא Whoever hates a Jew in his heart transgresses a negative commandment: "Do not hate your brother in your heart."… The Torah warned only about hatred *in the heart*. One who strikes or curses his fellow, though forbidden to do so, does not transgress "do not hate".

- **Same severity as eating non-kosher food.** Both are negative commandments. The only difference is that there are no lashes here, because lashes apply only to a prohibition involving an action, and this is in the heart.
- **"There's a deep psychological point here."** The Rambam puts it even more clearly in **Sefer HaMitzvot**: when you tell your friend *"I'm upset with you,"* you do not transgress this prohibition. You might transgress other things, but not this one. **Hatred stored in the heart is a very great sin, worse than many others.**

"Listen to that last line and remember it for life." If you want to hate him, go and tell him. That is better than walking around smiling while inside you think *I hate this guy.*

A modern idea from an ancient source

Today we're used to "talk it over," but that's quite modern. "I don't know about Ashkenazim, but in Sephardi circles, the older generations of parents and grandparents didn't like to talk. People liked to brush things under the carpet." Sitting down over a tea to sort out differences is a new thing, yet the Torah said hundreds of years ago that **the greatest problem is guarding hatred in your heart.** We also know today that it has terrible consequences for physical and mental health.

Part 6: The Real Mitzvah of Rebuke (Halacha 6)

כשיחטא איש לאיש לא ישטמנו וישתוק... אלא מצוה עליו להודיעו ולומר לו: למה עשית לי כך וכך? ולמה חטאת לי בדבר פלוני? שנאמר הוכח תוכיח את עמיתך When someone wrongs another, he should not hate him and keep silent… rather, it is a mitzvah to tell him: "Why did you do this to me? Why did you wrong me in this matter?", as it says: "You shall surely rebuke your fellow".

- **What not to do: Avshalom and Amnon.** After Amnon violated his half-sister Tamar, Avshalom was furious and said nothing to him at all, "neither bad nor good, because Avshalom hated Amnon" (Shmuel II 13:22). Two years later he had him killed.

"It only dawned on me today"

The Rabbi shared an insight he had while preparing the shiur.

The usual idea of *tochachah*	What the verse is mainly about
You see someone desecrating Shabbat, or talking in shul. If you're in a position to influence him, staying silent is tacit approval, so you must correct him.	Look at the context: **"Do not hate your brother in your heart; you shall surely rebuke your fellow"** (Vayikra 19:17).
A real mitzvah, but **secondary**, derived from this verse.	**The primary mitzvah is interpersonal.** Someone wronged you; don't store it, go and talk to them.

Someone spoke badly about you or embarrassed you in public. You can ignore them for the next two years and get upset every time you see them. Or you can go to them, *constructively* and without shouting, and say: "I want to tell you something. I'm upset about what you did to me." Then **not only have you removed the hatred from your heart, you've fulfilled a positive mitzvah.** "That's the beauty of the Rambam: he tells you things that you then realise are so obvious."

Back to Edwin's question. When someone wrongs us, if we do nothing we violate several commandments: we no longer love him, and worse, we hate him. What we need to do is try to have a conversation with him.

Part 7: Rebuke Only Your *Friend*, and from Love (Halacha 7, beginning)

הרואה חבירו שחטא או שהלך בדרך לא טובה, מצוה להחזירו למוטב ולהודיעו שהוא חוטא על עצמו במעשיו הרעים
One who sees his *friend* sinning or going on a bad path has a mitzvah to bring him back to the good and let him know he is harming himself through his bad deeds.

Read every word. Until now the Rambam spoke of *ish le-ish*, one person and another. Whenever he speaks about rebuke, he says **חבירו**, *his friend.*

- **Don't try to rebuke people who aren't your friends.** It won't work. You can't expect someone to listen without a close relationship.
- **Why rebuke so often backfires:** the person doesn't feel it comes from love. "If it comes from a place of love, people *like* to hear rebuke. Any normal person wants to grow: tell me more, please."
- **Not like this:** people who go around telling strangers off thinking they're doing *kiruv*, or who stop someone in the middle of the street to force a mitzvah on them. "That's not the way we operate." You can't walk into a shul you've attended for a day or two and tell people their tefillin are on wrong or they talk too much. They'll inevitably reply: "Who are you? I've known you for a few hours and you're telling me off already?"
- **Work within your own circle,** your friends, community and the people you work with. It must come from **חברות**, friendship and love. Shouting at someone isn't coming from love either.

המוכיח את חבירו, בין בדברים שבינו לבינו בין בדברים שבינו לבין המקום, צריך להוכיחו בינו לבין עצמו…
One who rebukes his friend, whether about matters between them or between him and God, must rebuke him privately…

The recording ends here.

Summary

1. **We become our company.** Choose friends among the righteous and *sit* with the wise. The Torah doesn't pretend we can resist influence.

2. **Cleaving to the Hachamim is a positive mitzvah.** The Hacham is defined in Chapter 5. The Rambam deliberately omits *supporting* scholars financially, consistent with his view that Torah must not be a livelihood.
3. **Love every Jew** who holds the principles of faith, even a sinner. Love grows from actions: speaking well of people and guarding their property and honour.
4. **The convert** is owed a double love.
5. **Hatred in the heart** is a negative commandment, and "worse than many other sins." Saying "I'm upset with you" is better than silent resentment.
6. **The primary mitzvah of *tochachah*** is to talk to the person who wronged you, constructively. Correcting others' religious conduct is derived from it, and works only between friends and from love.

Coming Up

- **Next week:** Chapter 7, the final chapter: the laws of slander and gossip, *lashon hara* and *rechilut*.
- **2 and 9 February 2021:** in conversation with Rabbi Joseph Dweck on Rabbi Sacks' *The Great Partnership* and *Not in God's Name*.

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